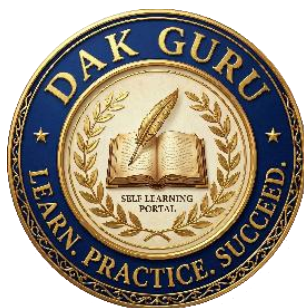




DAK GURU

A Self Learning Portal

LEARN. PRACTICE. SUCCEED.

www.dakguru.com

THE REVENUE RECOVERY ACT, 1890

(Act No. 1 of 1890)

Complete Bare-Act Study Notes • Section-wise Explanation
For Departmental Examinations — Inspector of Posts (LDCE) & PS Group 'B'

DISCLAIMER

This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and to incorporate the latest amendments, notifications, and orders affecting the relevant Act, Rules, and Regulations, this document is intended solely as a study aid. The statutory text reproduced herein is based on the official version published by the Legislative Department, Ministry of Law and Justice (India Code). Readers and aspirants are strongly advised to verify every provision against the original Gazette of India and official government sources before relying on it for any official, legal, or examination purpose. Dak Guru accepts no liability for any error, omission, or consequence arising from the use of this material.

Act at a Glance

Particulars	Details
Short title	The Revenue Recovery Act, 1890
Act number	Act No. 1 of 1890
Date of assent / enactment	14th February 1890
Enacted by	Governor-General of India in Council
Object (Preamble)	To make better provision for recovering certain public demands
No. of Sections	10 Sections + The Schedule (Certificate form)
Nature	A short, procedural Central Act — a machinery / recovery law
Administering authority	Collector of the district (revenue machinery)
Present extent	Whole of India. The bare-Act text still reads “ <i>except the State of Jammu and Kashmir</i> ”; however the Act was made applicable to the UT of J&K and UT of Ladakh w.e.f. 31-10-2019 by Notification S.O. 3912(E), dated 30-10-2019.

How to read these notes

- Each Section opens with its **exact marginal heading** as in the Bare Act, followed by a plain-language explanation.
- Boxes in **blue** give the key takeaway; **saffron** boxes flag exam / accuracy points; **green** boxes give memory aids and illustrations.
- “*Last foregoing section*” simply means “the section immediately before this one.” Watch for it — it is heavily tested.
- Footnote-style references (e.g. “Subs. by A.O. 1937”) indicate how the text was historically adapted; the version given here is the **latest in-force text**.

Core idea in one line

If a person owes **land-revenue** — or any sum that the law allows to be *recovered as if it were* an arrear of land-revenue — this Act lets a Collector recover that money **even when the defaulter or his property lies in a different district**, by sending a simple certificate to the Collector of that other district.

Preamble & Enacting Words

THE REVENUE RECOVERY ACT, 1890 — Act No. 1 of 1890 — [14th February 1890].

“Whereas it is expedient to make better provision for recovering certain public demands; It is hereby enacted as follows:—”

Meaning: The Preamble states the purpose of the Act — to create a **better, uniform procedure** for recovering “public demands.” Before 1890 each province had its own scattered rules; this Act gave one Central mechanism, the chief novelty being recovery **across district (and even province/State) boundaries**.

Exam / Accuracy Point

The date **14th February 1890** shown in square brackets is the **date of assent / enactment**, NOT a separate “commencement” date inside Section 1. Section 1 of this Act contains *only* the title and extent — it has no commencement sub-section.

Section 1 — Title and Extent

Bare provision

- (1) This Act may be called the **Revenue Recovery Act, 1890**.
- (2) It extends to the **whole of India** except the State of Jammu and Kashmir.

Explanation

The Act applies throughout India. The original text excluded the State of Jammu & Kashmir (which then had its own laws under Article 370). It has also been **extended with modifications** over the years to several territories — Goa, Daman & Diu (w.e.f. 1-8-1965), Dadra & Nagar Haveli (w.e.f. 1-7-1965), Lakshadweep (w.e.f. 1-10-1967) and Pondicherry (Puducherry).

Accuracy / Currency Point — J&K and Ladakh

This is the single most important update to remember. The bare-Act text still literally reads *“the whole of India except the State of Jammu and Kashmir.”* Parliament did **not** delete those words from Section 1.

Instead, after the abrogation of Article 370 and the **Jammu and Kashmir Reorganisation Act, 2019**, this Act was **made applicable to the Union Territory of Jammu & Kashmir and the Union Territory of Ladakh with effect from 31-10-2019** by Notification of the Government of India, Ministry of Home Affairs, **No. S.O. 3912(E), dated 30th October 2019.**

So the **correct present position** is: the Act now operates over the whole of India **including** the UT of J&K and the UT of Ladakh — but this comes from the 2019 notification, not from a change in the words of Section 1. (Avoid the common error of writing “Section 1 says it extends to the whole of India including J&K.”)

Section 2 — Definitions

In this Act, unless there is something repugnant in the subject or context —

Term	Definition under Section 2
“District” [s. 2(1)]	Includes a presidency-town (i.e. the old presidency capitals of Calcutta, Madras and Bombay are treated as districts for this Act).
“Collector” [s. 2(2)]	The chief officer in charge of the land-revenue administration of a district.
“Defaulter” [s. 2(3)]	A person from whom an arrear of land-revenue, <i>or a sum recoverable as an arrear of land-revenue</i> , is due. It also includes a surety — a person responsible as guarantor for payment of any such arrear or sum.

Memory aid

Three definitions — **D-C-D**: District (includes presidency-town), Collector (head of land-revenue), Defaulter (the debtor **and his surety**). The inclusion of the surety is a favourite MCQ point.

Section 3 — Recovery of Public Demands by Enforcement of Processes in Other Districts

Marginal heading: “Recovery of public demands by enforcement of processes in other districts than those in which they become payable.”

What it provides

- (1) Where an arrear of land-revenue (or a sum recoverable as such an arrear) is payable to a Collector by a defaulter who **is, or has property, in a district other than the one where the arrear accrued or the sum is payable**, that Collector may send to the Collector of that other district a **certificate** (in the form as nearly as may be of the Schedule) stating —
 - (a) the **name of the defaulter** and other particulars necessary to identify him; and
 - (b) the **amount payable** by him and the **account on which it is due**.
- (2) The certificate must be **signed by the Collector making it** (or by any officer to whom he delegates this duty by order in writing) and — save as otherwise provided by this Act — it is **conclusive proof** of the matters stated in it.
- (3) The Collector of the other district, on receiving the certificate, must **proceed to recover the amount as if it were an arrear of land-revenue that had accrued in his own district**.

In short: Section 3 is the **heart of the Act**. It creates the **“certificate” mechanism** by which one Collector can effectively “export” a recovery to another district. The receiving Collector treats the certificate as if the debt arose locally, and uses his ordinary land-revenue recovery powers.

Exam / Accuracy Point — do NOT skip Section 3(2)

Many circulating notes omit **sub-section (2)** entirely. Remember two tested ideas in 3(2): (i) the certificate may be signed by the Collector **or a delegated officer**; and (ii) the certificate is **conclusive proof** of the matters stated. “Conclusive proof” means the receiving Collector cannot go behind it — the remedy of the defaulter who disputes liability lies in a civil suit under Section 4, not before the recovering Collector.

Illustration

A defaulter owes land-revenue that accrued in **Erode district** but now lives and owns property in **Chennai**. The Collector of Erode signs a certificate (name, amount,

account) and sends it to the Collector of Chennai. The Collector of Chennai recovers the amount in Chennai exactly as if the arrear had accrued in Chennai.

Section 4 — Remedy of a Person Denying Liability

Marginal heading: “Remedy available to person denying liability to pay amount recovered under last foregoing section.” (“Last foregoing section” = Section 3.)

- (1) When recovery proceedings are taken against a person under Section 3, and that person **denies his liability**, he may — if he **pays the amount under protest** (the protest being in writing, made at the time of payment and signed by him or his agent) — **institute a suit for repayment** of the whole or part so paid.
- (2) Such a suit must be filed in a **Civil Court having jurisdiction in the local area where the office of the Collector who made the certificate is situated**; and the suit is decided **according to the law in force at the place where the arrear accrued** (or where the liability arose).
- (3) In that suit the plaintiff **may give evidence on any matter stated in the certificate** — notwithstanding the “conclusive proof” rule of Section 3 — but subject to the law in force at that place.
- (4) This section **also applies** where, under a similar Act forming part of the law of **Pakistan or Burma**, proceedings are taken against a person in Pakistan or Burma to recover an amount stated in a certificate made by a Collector in any State to which this Act extends. (A historical reciprocity provision.)

Key takeaway — the “Pay under protest, then sue” rule

Because the certificate is conclusive before the recovering Collector (Section 3), the defaulter *cannot stop the recovery by arguing*. His only remedy is to **pay under written protest at the time of payment** and then **file a civil suit** for refund. Two conditions are essential and frequently tested: the protest must be (i) **in writing** and (ii) **made at the very time of payment** (and signed). No protest at the time of payment → no suit.

Section 5 — Recovery by Collectors of Sums Recoverable as Arrears of Revenue by Other Public Officers or Local Authorities

Where any sum is recoverable as an arrear of land-revenue by **any public officer (other than a Collector) or by a local authority**, the Collector of the district in which that officer's or authority's office is situated shall — **on the request of that officer or authority** — proceed to recover the sum as if it were an arrear of land-revenue accrued in his own district. He may also forward a certificate to the Collector of another district under Section 3, as if the sum were payable to himself.

Effect: Section 5 lets **other public officers and local authorities** (who themselves have no land-revenue recovery machinery) **“borrow” the Collector's recovery powers**. The Collector acts on their request and can even chase a defaulter into another district via Section 3. This is the gateway through which many departmental and statutory dues are recovered “as arrears of land-revenue.”

Section 6 — Property Liable to Sale under this Act

- (1) On receiving a certificate, the Collector **may issue a proclamation** prohibiting the **transfer or charging of any immovable property** of the defaulter in the district.
- (2) The Collector may **withdraw the proclamation** at any time by order in writing. It is **deemed withdrawn** once either the certificate amount is recovered, or the property is sold for that recovery.
- (3) Any **private alienation** of the property (or of the defaulter's interest in it) — by sale, gift, mortgage or otherwise — made **after the proclamation and before its withdrawal** is **void as against the Government** and against any person who buys the property at the recovery sale.
- (4) Only the **interest of the defaulter alone** may be proceeded against. Encumbrances created, grants made, or contracts entered into by him **in good faith** are **not invalidated** merely because proceedings are taken against those interests.
- (5) A proclamation must be made **by beat of drum (or other customary method)** and by **posting a copy at a conspicuous place** in or near the property concerned.

Memory aid — Section 6 in five steps**Proclaim → Freeze → Withdraw → Void private deals → Publicise.**

(1) Proclaim the prohibition; (2) Withdraw on recovery/sale; (3) any private transfer after proclamation is void; (4) only defaulter's interest is touched, good-faith dealings are safe; (5) publicity by beat of drum + posting.

Section 7 — Saving of Local Laws Relating to Revenue

Nothing in the foregoing sections shall be construed —

- (a) to **impair any security** provided by, or affect the provisions of, **any other enactment for the time being in force** for the recovery of land-revenue or of sums recoverable as arrears of land-revenue; or
- (b) to **authorise the arrest of any person** for the recovery of any tax payable to a corporation, commissioner, committee, board, council or person having authority over a municipality, under any enactment for the time being in force.

Exam / Accuracy Point — Section 7 has real content

Several circulating notes show Section 7 as a **bare heading with no text** — that is incomplete. Section 7 is a **saving clause** with two limbs: (a) it does *not* override other revenue-recovery laws or weaken securities under them; and (b) it does *not* authorise **arrest** for recovering municipal/local-body taxes. Limb (b) — “no arrest for municipal tax” — is a classic one-mark question.

Section 8 — Recovery in India of Certain Public Demands Arising Beyond India

When this Act has been applied to a **local area under the administration of the Central Government but not part of India**, an arrear of land-revenue accruing there — or a sum recoverable as such an arrear and payable to a Collector, other public officer, or local authority in that area — **may be recovered under this Act within India**.

Plain meaning: This is a **cross-border (extra-territorial) recovery** provision for certain centrally-administered areas lying outside India proper. A demand that arose *outside*

India (in such an area) can still be *recovered inside* India using this Act's machinery. Largely of historical importance today.

Section 9 — Recovery in India of Land-Revenues, etc., Accruing in Burma

- (1) The Central Government may **direct** that an arrear of land-revenue accruing in **Burma** (or a sum recoverable there as such an arrear, payable to a Collector / other public officer / local authority in Burma) **may be recovered under this Act in India**. *Proviso*: such a direction shall not be given unless the Central Government is satisfied that a **reciprocal remedy** (like the “payment under protest” remedy of Section 4) is available to a person under Burma law.
- (2) For recovering arrears of **tax or penalty under income-tax / super-tax laws in force in Burma**, the Collector has the same **additional powers** as he has for Indian income-tax (under the proviso to s. 46(2) of the Indian Income-tax Act, 1922).
- (3) Sub-sections (1) and (2) **apply in relation to Pakistan** as they apply in relation to Burma.

Exam / Accuracy Point

Do not forget **sub-section 9(3)** — it **extends the Burma provision to Pakistan**. Many notes drop it. Sections 8, 9 (and the Pakistan/Burma references in Sections 4 and 10) are *historical / reciprocity* provisions surviving from the pre-Partition era; they are tested mainly for awareness, not practical application.

Section 10 — Duty of Collectors to Remit Moneys Collected in Certain Cases

Where a Collector receives a certificate under this Act from a **Collector of another State**, or a **Collector in Pakistan or Burma**, he shall **remit any sum recovered** by virtue of that certificate to that Collector — **after deducting his expenses** in connection with the matter.

Plain meaning: The recovering Collector is a **collecting agent**, not the owner of the money. After recovery he must **hand over (remit) the proceeds** to the Collector who issued the certificate, keeping back only his **recovery expenses**.

The Schedule — Form of Certificate

[See Section 3, sub-section (1)]

The Act prescribes a simple **Certificate** form to be used under Section 3. The certificate runs broadly as follows:

CERTIFICATE (Schedule form)

From — The Collector of _____

To — The Collector of _____

Dated the ____ of 18____

"The sum of Rs. ____ is payable on account of ____ by ____, son of ____, resident of ____, who is believed (to be at) (to have property consisting of ____ at) in your district. Subject to the provisions of the Revenue Recovery Act, 1890, the said sum is recoverable by you as if it were an arrear of land-revenue which had accrued in your own district, and you are hereby desired so to recover it and to remit it to my office at ____."

A.B., Collector of _____

State Amendments — For Awareness

Being a Central Act, the Revenue Recovery Act, 1890 has been adapted by some States. For a Central departmental examination the **Central text above is the primary, examinable version**; the following State changes are given only for completeness and should not be confused with the Central provisions.

State / Instrument	Nature of amendment (in brief)
Uttar Pradesh (U.P. Act 11 of 1965)	Widened "Collector" in s. 2 to include an empowered Assistant Collector; modified s. 3(2) and substituted s. 5 (with a new s. 5-A for defaulters/property outside U.P.); added a rule-making section 11.
Assam (Assam Act 16 of 1971)	Inserted s. 3A allowing a "Certificate Officer" (as under the Bengal Public Demands Recovery Act, 1913) to perform the Collector's functions for received certificates.

State / Instrument	Nature of amendment (in brief)
Haryana (Haryana Act 12 of 2003)	Substituted s. 5 (recovery on certificates of public officers / local authorities) and added s. 5-A for defaulters/property outside Haryana.
Uttarakhand (Uttarakhand Act 28 of 2013)	Introduced recovery of “costs of recovery” (capped at 10% of the certificate amount) across ss. 3, 4, 5, 6 and substituted s. 10 on remittance.

Accuracy / Currency Note

State amendments operate **only within that State**. They do not alter the Central Act as applied elsewhere. Always confirm the exact wording for a particular State against that State's Gazette before relying on it. The Central text and the J&K/Ladakh extension (S.O. 3912(E), 31-10-2019) are the points most likely to be tested in IP / PS Group 'B' examinations.



Quick Revision Capsule

Section	One-line gist
1	Title & extent — whole of India; extended to UT of J&K and UT of Ladakh w.e.f. 31-10-2019 (S.O. 3912(E)).
2	Definitions — District (incl. presidency-town), Collector, Defaulter (incl. surety).
3	The certificate mechanism — recover across districts; certificate signed by Collector / delegate; conclusive proof.
4	Disputing defaulter must pay under written protest at time of payment, then sue in Civil Court.
5	Other public officers / local authorities may use the Collector's recovery powers on request.
6	Proclamation freezing immovable property; private transfers after proclamation are void; good-faith dealings saved; publicity by beat of drum + posting.
7	Saving clause — does not override other revenue laws; no arrest for municipal/local-body tax.
8	Recovery in India of demands arising in centrally-administered areas outside India.
9	Recovery in India of demands accruing in Burma (and, by s. 9(3), Pakistan), on reciprocity.
10	Recovering Collector must remit recovered money to the issuing Collector, after deducting expenses.
Schedule	Prescribed form of the Certificate under s. 3(1).

Five most-tested points

- **“Extent” nuance:** J&K/Ladakh covered via the 2019 notification (S.O. 3912(E)), not by deleting words in Section 1.
- **Defaulter** includes the **surety** [s. 2(3)].
- **Certificate is conclusive proof** [s. 3(2)]; dispute only via suit under s. 4.
- **Payment under written protest, at the time of payment**, is the pre-condition to suing [s. 4(1)].
- **No arrest** for recovery of municipal/local-body tax [s. 7(b)].

— End of Notes —

Dak Guru — Learn. Practice. Succeed. | www.dakguru.com

